REPUBLIC OF THE PHILIPPINES
DEPARTMENT OF FINANCE
BUREAU OF INTERNAL REVENUE
Bids and Awards Committee

PHILIPPINE BIDDING DOCUMENTS

Sixth Edition
July 2020

PROCUREMENT OF BIR MINOR FORMS FOR THE CALENDAR YEAR 2024 (1 LOT)

Date of Posting: May 7, 2024
Pre-Bid Conference: May 14, 2024
Submission, Receipt and Opening of Bids: May 28, 2024

Public Bidding No. 2024-45 (GOODS)

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Glossary of Acronyms, Terms, and Abbreviations

ABC – Approved Budget for the Contract.

BAC – Bids and Awards Committee.

Bid – A signed offer or proposal to undertake a contract submitted by a bidder in response to and in consonance with the requirements of the bidding documents. Also referred to as *Proposal* and *Tender*. (2016 revised IRR, Section 5[c])

Bidder – Refers to a contractor, manufacturer, supplier, distributor and/or consultant who submits a bid in response to the requirements of the Bidding Documents. (2016 revised IRR, Section 5[d])

Bidding Documents – The documents issued by the Procuring Entity as the bases for bids, furnishing all information necessary for a prospective bidder to prepare a bid for the Goods, Infrastructure Projects, and/or Consulting Services required by the Procuring Entity. (2016 revised IRR, Section 5[e])

BIR – Bureau of Internal Revenue.

BSP – Bangko Sentral ng Pilipinas.

Consulting Services – Refer to services for Infrastructure Projects and other types of projects or activities of the GOP requiring adequate external technical and professional expertise that are beyond the capability and/or capacity of the GOP to undertake such as, but not limited to: (i) advisory and review services; (ii) pre-investment or feasibility studies; (iii) design; (iv) construction supervision; (v) management and related services; and (vi) other technical services or special studies. (2016 revised IRR, Section 5[i])

CDA - Cooperative Development Authority.

Contract – Refers to the agreement entered into between the Procuring Entity and the Supplier or Manufacturer or Distributor or Service Provider for procurement of Goods and Services; Contractor for Procurement of Infrastructure Projects; or Consultant or Consulting Firm for Procurement of Consulting Services; as the case may be, as recorded in the Contract Form signed by the parties, including all attachments and appendices thereto and all documents incorporated by reference therein.

CIF – Cost Insurance and Freight.

CIP – Carriage and Insurance Paid.

CPI – Consumer Price Index.

DDP – Refers to the quoted price of the Goods, which means "delivered duty paid."

DTI – Department of Trade and Industry.

EXW – Ex works.

FCA – "Free Carrier" shipping point.

FOB – "Free on Board" shipping point.

Foreign-funded Procurement or Foreign-Assisted Project– Refers to procurement whose funding source is from a foreign government, foreign or international financing institution as specified in the Treaty or International or Executive Agreement. (2016 revised IRR, Section 5[b]).

Framework Agreement – Refers to a written agreement between a procuring entity and a supplier or service provider that identifies the terms and conditions, under which specific purchases, otherwise known as "Call-Offs," are made for the duration of the agreement. It is in the nature of an option contract between the procuring entity and the bidder(s) granting the procuring entity the option to either place an order for any of the goods or services identified in the Framework Agreement List or not buy at all, within a minimum period of one (1) year to a maximum period of three (3) years. (GPPB Resolution No. 27-2019)

GFI – Government Financial Institution.

GOCC – Government-owned and/or –controlled corporation.

Goods – Refer to all items, supplies, materials and general support services, except Consulting Services and Infrastructure Projects, which may be needed in the transaction of public businesses or in the pursuit of any government undertaking, project or activity, whether in the nature of equipment, furniture, stationery, materials for construction, or personal property of any kind, including non-personal or contractual services such as the repair and maintenance of equipment and furniture, as well as trucking, hauling, janitorial, security, and related or analogous services, as well as procurement of materials and supplies provided by the Procuring Entity for such services. The term "related" or "analogous services" shall include, but is not limited to, lease or purchase of office space, media advertisements, health maintenance services, and other services essential to the operation of the Procuring Entity. (2016 revised IRR, Section 5[r])

GOP – Government of the Philippines.

GPPB – Government Procurement Policy Board.

INCOTERMS – International Commercial Terms.

Infrastructure Projects – Include the construction, improvement, rehabilitation, demolition, repair, restoration or maintenance of roads and bridges, railways, airports, seaports, communication facilities, civil works components of information technology projects, irrigation, flood control and drainage, water supply, sanitation, sewerage and solid waste management systems, shore protection, energy/power and electrification facilities, national buildings, school buildings, hospital buildings, and other related construction projects of the government. Also referred to as *civil works or works*. (2016 revised IRR, Section 5[u])

LGUs – Local Government Units.

NFCC – Net Financial Contracting Capacity.

NGA – National Government Agency.

PhilGEPS - Philippine Government Electronic Procurement System.

Procurement Project – refers to a specific or identified procurement covering goods, infrastructure project or consulting services. A Procurement Project shall be described, detailed, and scheduled in the Project Procurement Management Plan prepared by the agency which shall be consolidated in the procuring entity's Annual Procurement Plan. (GPPB Circular No. 06-2019 dated 17 July 2019)

PSA – Philippine Statistics Authority.

SEC – Securities and Exchange Commission.

SLCC – Single Largest Completed Contract.

Supplier – refers to a citizen, or any corporate body or commercial company duly organized and registered under the laws where it is established, habitually established in business and engaged in the manufacture or sale of the merchandise or performance of the general services covered by his bid. (Item 3.8 of GPPB Resolution No. 13-2019, dated 23 May 2019). Supplier as used in these Bidding Documents may likewise refer to a distributor, manufacturer, contractor, or consultant.

UN – United Nations.

Section I

Invitation to Bid

REPUBLIC OF THE PHILIPPINES
DEPARTMENT OF FINANCE
BUREAU OF INTERNAL REVENUE
Quezon City

April 30, 2024

INVITATION TO BID FOR
P.B. NO. 2024-45 (GOODS)
PROCUREMENT OF BIR MINOR FORMS FOR THE CALENDAR YEAR 2024

1. The ***Bureau of Internal Revenue – National Office (BIR-NO)***, through the ***General Appropriations Act (GAA) FY 2024*** intends to apply the sum of ***Five Million Nine Hundred Fifty-Two Thousand Pesos (Php 5,952,000.00) Only*** being the ABC to payments under the contract for ***P.B. No. 2024-45 (GOODS) – Procurement of BIR Minor Forms for the Calendar Year 2024 (1 Lot).*** Bids received in excess of the ABC shall be automatically rejected at bid opening.

2. The **BIR-NO** now invites bids for the above Procurement Project. Delivery of goods shall be **within forty-five (45) calendar days from receipt of Notice to Proceed**. Bidders should have completed, within the last three (3) years from the date of submission and receipt of bids, a contract similar to the Project. The description of an eligible bidder is contained in the Bidding Documents, particularly, in Section II, Instructions to Bidders.

3. Bidding will be conducted through open competitive bidding procedures using a non-discretionary "*pass/fail*" criterion as specified in the 2016 revised Implementing Rules and Regulations (IRR) of Republic Act (RA) No. 9184.

   Bidding is restricted to Filipino citizens/sole proprietorships, partnerships, or organizations with at least sixty percent (60%) interest or outstanding capital stock belonging to citizens of the Philippines, and to citizens or organizations of a country the laws or regulations of which grant similar rights or privileges to Filipino citizens, pursuant to RA No. 5183.

4. Prospective Bidders may obtain further information from BAC Secretariat, Bureau of Internal Revenue- National Office (BIR-NO) and inspect the Bidding Documents at the address given below during 8:00AM-5:00PM.

5. A complete set of Bidding Documents may be acquired by interested Bidders starting ***May 7, 2024*** from the given address and website(s) below and upon **cash payment** to the BIR cashier of the applicable fee for the Bidding Documents, pursuant to the latest Guidelines issued by the GPPB, in the amount of **Eight Thousand Pesos (Php 8,000.00) Only**. The Procuring Entity shall allow the bidder to present its proof of payment for the fees in person or through electronic means.

6. The **BIR-NO** will hold a Pre-Bid Conference on ***May 14, 2024*** **at 1:30 p.m.** through video conferencing/webcasting *via* **Zoom Cloud Meeting** *(link to be emailed)***,** which shall be open to prospective bidders.

7. Bids must be duly received by the BAC Secretariat through **manual submission** at the office address indicated below on or before ***May 28, 2024*** **at 1:30 p.m.** Late Bids shall not be accepted.

8. All Bids must be accompanied by a bid security in any of the acceptable forms and in the amount stated in **ITB** Clause 14.

9. Bid opening shall be on ***May 28, 2024*** **at 1:30 p.m.** at the **11/F Procurement Division Conference Room, Bureau of Internal Revenue - NOB, Diliman, Quezon City** and/or through video conferencing/webcasting via **Zoom Cloud Meeting** *(link to be emailed)*. Bids will be opened in the presence of the bidders' representatives who choose to attend the activity.

10. The **BIR-NO** reserves the right to reject any and all bids, declare a failure of bidding, or not award the contract at any time prior to contract award in accordance with Sections 35.6 and 41 of the 2016 revised IRR of RA No. 9184, without thereby incurring any liability to the affected bidder or bidders.

11. For further information, please refer to:

Atty. James H. Roldan
Assistant Commissioner-Enforcement and Advocacy Service
Chairperson, Bids and Awards Committee
Bureau of Internal Revenue
c/o Rm. 1106, 11/F Procurement Division
BIR-NOB, Diliman, Quezon City
Tel No. 8981-7442 & 8981-7441
Email Addresses : nelly.ibo@bir.gov.ph, andy.tomas@bir.gov.ph, mariel.mohammad- sali@bir.gov.ph, marilyn.orapa@bir.gov.ph and rowee.vegail.reyes@bir.gov.ph

12. You may visit the following websites:

For downloading of Bidding Documents:
https://www.bir.gov.ph/index.php/bid-opportunities.html
https://notices.philgeps.gov.ph/

JAMES H. ROLDAN
Assistant Commissioner
Enforcement and Advocacy Service
Chairperson, Bids and Awards Committee

Date of Posting: May 7, 2024

Section II

Instructions to Bidders

1. Scope of Bid

The Procuring Entity, ***Bureau of Internal Revenue – N.O.*** wishes to receive Bids for the ***Procurement of BIR Minor Forms for the Calendar Year 2024 (1 Lot)*** with identification number ***P.B. No. 2024-45 (GOODS).***

The Procurement Project (referred to herein as "Project") is composed of **1 lot**, the details of which are described in Section VII (Technical Specifications).

2. Funding Information

2.1 The GOP through the source of funding as indicated below for ***FY 2024*** in the amount of ***Five Million Nine Hundred Fifty-Two Thousand Pesos (Php 5,952,000.00) Only.***

2.2 The source of funding is NGA, the **General Appropriations Act (GAA)**.

3. Bidding Requirements

The Bidding for the Project shall be governed by all the provisions of RA No. 9184 and its 2016 revised IRR, including its Generic Procurement Manuals and associated policies, rules and regulations as the primary source thereof, while the herein clauses shall serve as the secondary source thereof.

Any amendments made to the IRR and other GPPB issuances shall be applicable only to the ongoing posting, advertisement, or **IB** by the BAC through the issuance of a supplemental or bid bulletin.

The Bidder, by the act of submitting its Bid, shall be deemed to have verified and accepted the general requirements of this Project, including other factors that may affect the cost, duration and execution or implementation of the contract, project, or work and examine all instructions, forms, terms, and project requirements in the Bidding Documents.

4. Corrupt, Fraudulent, Collusive, and Coercive Practices

The Procuring Entity, as well as the Bidders and Suppliers, shall observe the highest standard of ethics during the procurement and execution of the contract. They or through an agent shall not engage in corrupt, fraudulent, collusive, coercive, and obstructive practices defined under Annex "I" of the 2016 revised IRR of RA No. 9184 or other integrity violations in competing for the Project.

5. Eligible Bidders

5.1. Only Bids of Bidders found to be legally, technically, and financially capable will be evaluated.

5.2. Foreign ownership exceeding those allowed under the rules may participate pursuant to:

i. When a Treaty or International or Executive Agreement as provided in Section 4 of the RA No. 9184 and its 2016 revised IRR allow foreign bidders to participate;

ii. Citizens, corporations, or associations of a country, included in the list issued by the GPPB, the laws or regulations of which grant reciprocal rights or privileges to citizens, corporations, or associations of the Philippines;

iii. When the Goods sought to be procured are not available from local suppliers; or

iv. When there is a need to prevent situations that defeat competition or restrain trade.

5.3. Pursuant to Section 23.4.1.3 of the 2016 revised IRR of RA No.9184, the Bidder shall have an SLCC that is at least one (1) contract similar to the Project the value of which, adjusted to current prices using the PSA's CPI, must be at least equivalent to:

a. For the procurement of Non-expendable Supplies and Services: The Bidder must have completed a single contract that is similar to this Project, equivalent to at least fifty percent (50%) of the ABC.

5.4. The Bidders shall comply with the eligibility criteria under Section 23.4.1 of the 2016 IRR of RA No. 9184.

6. Origin of Goods

There is no restriction on the origin of goods other than those prohibited by a decision of the UN Security Council taken under Chapter VII of the Charter of the UN, subject to Domestic Preference requirements under **ITB** Clause 18.

7. Subcontracts

7.1. The Bidder may subcontract portions of the Project to the extent allowed by the Procuring Entity as stated herein, but in no case more than twenty percent (20%) of the Project.

The Procuring Entity has prescribed that Subcontracting is not allowed.

8. Pre-Bid Conference

The **BIR-N.O.** will hold a Pre-Bid Conference[1] on **May 14, 2024 at 1:30 p.m.** through video conferencing/webcasting *via* **Zoom Cloud Meeting** *(link to be emailed),* which shall be open to prospective bidders.

[1] May be deleted in case the ABC is less than One Million Pesos (PhP1,000,000) where the Procuring Entity may not hold a Pre-Bid Conference.

9. Clarification and Amendment of Bidding Documents

Prospective bidders may request for clarification on and/or interpretation of any part of the Bidding Documents. Such requests must be in writing and received by the Procuring Entity, either at its given address or through electronic mail indicated in the **IB**, at least ten (10) calendar days before the deadline set for the submission and receipt of Bids.

10. Documents comprising the Bid: Eligibility and Technical Components

10.1. The first envelope shall contain the eligibility and technical documents of the Bid as specified in **Section VIII (Checklist of Technical and Financial Documents)**.

10.2. The Bidder's SLCC as indicated in **ITB** Clause 5.3 should have been completed within ***the last three (3) years*** prior to the deadline for the submission and receipt of bids.

10.3. If the eligibility requirements or statements, the bids, and all other documents for submission to the BAC are in foreign language other than English, it must be accompanied by a translation in English, which shall be authenticated by the appropriate Philippine foreign service establishment, post, or the equivalent office having jurisdiction over the foreign bidder's affairs in the Philippines. Similar to the required authentication above, for Contracting Parties to the Apostille Convention, only the translated documents shall be authenticated through an apostille pursuant to GPPB Resolution No. 13-2019 dated 23 May 2019. The English translation shall govern, for purposes of interpretation of the bid.

11. Documents comprising the Bid: Financial Component

11.1. The second bid envelope shall contain the financial documents for the Bid as specified in **Section VIII (Checklist of Technical and Financial Documents)**.

11.2. If the Bidder claims preference as a Domestic Bidder or Domestic Entity, a certification issued by DTI shall be provided by the Bidder in accordance with Section 43.1.3 of the 2016 revised IRR of RA No. 9184.

11.3. Any bid exceeding the ABC indicated in paragraph 1 of the **IB** shall not be accepted.

11.4. For Foreign-funded Procurement, a ceiling may be applied to bid prices provided the conditions are met under Section 31.2 of the 2016 revised IRR of RA No. 9184.

12. Bid Prices

12.1. Prices indicated on the Price Schedule shall be entered separately in the following manner:

a. For Goods offered from within the Procuring Entity's country:

i. The price of the Goods quoted EXW (ex-works, ex-factory, ex-warehouse, ex-showroom, or off-the-shelf, as applicable);

ii. The cost of all customs duties and sales and other taxes already paid or payable;

iii. The cost of transportation, insurance, and other costs incidental to delivery of the Goods to their final destination; and

iv. The price of other (incidental) services, if any, listed in e.

b. For Goods offered from abroad:

i. Unless otherwise stated in the **BDS**, the price of the Goods shall be quoted delivered duty paid (DDP) with the place of destination in the Philippines as specified in the **BDS**. In quoting the price, the Bidder shall be free to use transportation through carriers registered in any eligible country. Similarly, the Bidder may obtain insurance services from any eligible source country.

ii. The price of other (incidental) services, if any, as listed in **Section VII (Technical Specifications).**

13. Bid and Payment Currencies

13.1. For Goods that the Bidder will supply from outside the Philippines, the bid prices may be quoted in the local currency or tradeable currency accepted by the BSP at the discretion of the Bidder. However, for purposes of bid evaluation, Bids denominated in foreign currencies, shall be converted to Philippine currency based on the exchange rate as published in the BSP reference rate bulletin on the day of the bid opening.

13.2. Payment of the contract price shall be made in Philippine Pesos.

14. Bid Security

14.1. The Bidder shall submit a Bid Securing Declaration[2] or any form of Bid Security in the amount indicated in the **BDS**, which shall be not less than the percentage of the ABC in accordance with the schedule in the **BDS**.

[2] In the case of Framework Agreement, the undertaking shall refer to entering into contract with the Procuring Entity and furnishing of the performance security or the performance securing declaration within ten (10) calendar days from receipt of Notice to Execute Framework Agreement.

14.2. The Bid and bid security shall be valid until ***September 25, 2024***. Any Bid not accompanied by an acceptable bid security shall be rejected by the Procuring Entity as non-responsive.

15. Sealing and Marking of Bids

Each Bidder shall submit one copy of the first and second components of its Bid.

The Procuring Entity may request additional hard copies and/or electronic copies of the Bid. However, failure of the Bidders to comply with the said request shall not be a ground for disqualification.

If the Procuring Entity allows the submission of bids through online submission or any other electronic means, the Bidder shall submit an electronic copy of its Bid, which must be digitally signed. An electronic copy that cannot be opened or is corrupted shall be considered non-responsive and, thus, automatically disqualified.

16. Deadline for Submission of Bids

16.1. The Bidders shall submit on the specified date and time and either at its physical address or through online submission as indicated in paragraph 7 of the **IB.**

17. Opening and Preliminary Examination of Bids

17.1. The BAC shall open the Bids in public at the time, on the date, and at the place specified in paragraph 9 of the **IB**. The Bidders' representatives who are present shall sign a register evidencing their attendance. In case videoconferencing, webcasting or other similar technologies will be used, attendance of participants shall likewise be recorded by the BAC Secretariat.

In case the Bids cannot be opened as scheduled due to justifiable reasons, the rescheduling requirements under Section 29 of the 2016 revised IRR of RA No. 9184 shall prevail.

17.2. The preliminary examination of bids shall be governed by Section 30 of the 2016 revised IRR of RA No. 9184.

18. Domestic Preference

18.1. The Procuring Entity will grant a margin of preference for the purpose of comparison of Bids in accordance with Section 43.1.2 of the 2016 revised IRR of RA No. 9184.

19. Detailed Evaluation and Comparison of Bids

19.1. The Procuring BAC shall immediately conduct a detailed evaluation of all Bids rated "*passed*," using non-discretionary pass/fail criteria. The BAC shall consider the conditions in the evaluation of Bids under Section 32.2 of the 2016 revised IRR of RA No. 9184.

19.2. If the Project allows partial bids, bidders may submit a proposal on any of the lots or items, and evaluation will be undertaken on a per lot or item basis, as the case maybe. In this case, the Bid Security as required by **ITB** Clause 15 shall be submitted for each lot or item separately.

19.3. The descriptions of the lots or items shall be indicated in **Section VII (Technical Specifications)**, although the ABCs of these lots or items are indicated in the **BDS** for purposes of the NFCC computation pursuant to Section 23.4.2.6 of the 2016 revised IRR of RA No. 9184. The NFCC must be sufficient for the total of the ABCs for all the lots or items participated in by the prospective Bidder.

19.4. The Project shall be awarded as:

Option 1 – **One Project having several items that shall be awarded as one contract.**

However, for evaluation purposes bid price per item shall not exceed the ABC per item.

19.5. Except for bidders submitting a committed Line of Credit from a Universal or Commercial Bank in lieu of its NFCC computation, all Bids must include the NFCC computation pursuant to Section 23.4.1.4 of the 2016 revised IRR of RA No. 9184, which must be sufficient for the total of the ABCs for all the lots or items participated in by the prospective Bidder. For bidders submitting the committed Line of Credit, it must be at least equal to ten percent (10%) of the ABCs for all the lots or items participated in by the prospective Bidder.

20. Post-Qualification

20.2. Within a non-extendible period of five (5) calendar days from receipt by the Bidder of the notice from the BAC that it submitted the Lowest Calculated Bid, the Bidder shall submit its latest income and business tax returns filed and paid through the BIR Electronic Filing and Payment System (eFPS) and other appropriate licenses and permits required by law and stated in the **BDS**.

21. Signing of the Contract

21.1. The documents required in Section 37.2 of the 2016 revised IRR of RA No. 9184 shall form part of the Contract. Additional Contract documents are indicated in the **BDS**.

Section III

Bid Data Sheet

Bid Data Sheet

<table>
<tr><th>ITB Clause</th><th></th></tr>
<tr><td>5.3</td><td>For this purpose, contracts similar to the Project shall be:

a. Printing of Forms

b. completed within the last three (3) years prior to the deadline for the submission and receipt of bids.</td></tr>
<tr><td></td><td>The price of the Goods shall be quoted DDP in the BIR – National Office, Diliman, Quezon City or the applicable International Commercial Terms (INCOTERMS) for this Project.</td></tr>
<tr><td>14.1</td><td>The bidder shall submit a:

1. Sworn Bid Securing Declaration,

OR

2. Any of the following forms:
<table>
<tr><th>Form of Security</th><th>Amount not less than the required % of the Approved Budget for the Contact (ABC)</th></tr>
<tr><td>a) Cash or cashier's/manager's check, issued by a Universal or Commercial Bank.

The Bid Security shall be payable to the "BUREAU OF INTERNAL REVENUE".</td><td rowspan="2">Two percent (2%)

Php 119,040.00</td></tr>
<tr><td>b) Bank draft/guarantee or irrevocable letter of credit issued by a Universal or Commercial Bank. Provided, however, that it shall be confirmed or authenticated by a Universal or Commercial Bank, if issued by a foreign bank.</td></tr>
<tr><td>c) Surety bond callable upon demand issued by a surety or insurance company duly certified by the Insurance Commission as authorized to issue such security.</td><td>Five percent (5%)

Php 297,600.00</td></tr>
</table>
Note:

1. In case of an incorporated/registered JV, it shall be secured in the name of the JV. If JV is unincorporated unregistered, submission of bid security by any of the JV partners constitutes compliance.
2. Sworn/under oath statement/affidavit shall be executed by the duly authorized signatory, with the corresponding documentary stamps and latest notarization.
3. All notarization shall be made in accordance with the provisions of the 2004 rules on Notarial Practice as prescribed by the Supreme Court of the Philippines.</td></tr>
</table>

Bid Data Sheet

20.2	Within a non-extendible period of **five (5) calendar days** from receipt by the bidder of the notice from the BAC that it submitted the Lowest Calculated Bid, the Bidder shall submit ***one (1) original and one (1) copy*** **(**duly signed by the authorized signatory) of the following documentary requirements: **a. 2023 Annual Income Tax Return (ITR)** **b. Business Tax Return** **Forms 2550Q/2551Q – 4th Qtr. 2023 and 1st Qtr. 2024** ***NOTE:*** 1. *Duly filed thru Electronic Filing and Payment System (eFPS) of the BIR and duly validated confirmation evidencing the tax payments made with the corresponding Filing Reference Number.* 2. *Only tax returns filed and taxes paid through the BIR Electronic Filing and Payment System (EFPS) shall be accepted.* Failure to submit any of the post-qualification requirements on time, or a finding against the veracity thereof, shall disqualify the bidder for award. Provided in the event that a finding against the veracity of any of the documents submitted is made, it shall cause the forfeiture of the bid security in accordance with Section 69 of the 2016 Revised IRR of RA 9184.

Section IV

General Conditions of Contract

1. Scope of Contract

This Contract shall include all such items, although not specifically mentioned, that can be reasonably inferred as being required for its completion as if such items were expressly mentioned herein. All the provisions of RA No. 9184 and its 2016 revised IRR, including the Generic Procurement Manual, and associated issuances, constitute the primary source for the terms and conditions of the Contract, and thus, applicable in contract implementation. Herein clauses shall serve as the secondary source for the terms and conditions of the Contract.

This is without prejudice to Sections 74.1 and 74.2 of the 2016 revised IRR of RA No. 9184 allowing the GPPB to amend the IRR, which shall be applied to all procurement activities, the advertisement, posting, or invitation of which were issued after the effectivity of the said amendment.

Additional requirements for the completion of this Contract shall be provided in the **Special Conditions of Contract** (**SCC).**

2. Advance Payment and Terms of Payment

2.1 Advance payment of the contract amount is provided under Annex "D" of the revised 2016 IRR of RA No. 9184.

2.2 The Procuring Entity is allowed to determine the terms of payment on the partial or staggered delivery of the Goods procured, provided such partial payment shall correspond to the value of the goods delivered and accepted in accordance with prevailing accounting and auditing rules and regulations. The terms of payment are indicated in the **SCC**.

3. Performance Security

Within ten (10) calendar days from receipt of the Notice of Award by the Bidder from the Procuring Entity but in no case later than prior to the signing of the Contract by both parties, the successful Bidder shall furnish the performance security in any of the forms prescribed in Section 39 of the 2016 revised IRR of RA No. 9184.

4. Inspection and Tests

The Procuring Entity or its representative shall have the right to inspect and/or to test the Goods to confirm their conformity to the Project specifications at no extra cost to the Procuring Entity in accordance with the Generic Procurement Manual. In addition to tests in the **SCC**, **Section VII (Technical Specifications)** shall specify what inspections and/or tests the Procuring Entity requires, and where they are to be conducted. The Procuring Entity shall notify the Supplier in writing, in a timely manner, of the identity of any representatives retained for these purposes.

All reasonable facilities and assistance for the inspection and testing of Goods, including access to drawings and production data, shall be provided by the Supplier to the authorized inspectors at no charge to the Procuring Entity.

5. Warranty

5.1 In order to assure that manufacturing defects shall be corrected by the Supplier, a warranty shall be required from the Supplier as provided under Section 62.1 of the 2016 revised IRR of RA No. 9184.

5.2 The Procuring Entity shall promptly notify the Supplier in writing of any claims arising under this warranty. Upon receipt of such notice, the Supplier shall, repair or replace the defective Goods or parts thereof without cost to the Procuring Entity, pursuant to the Generic Procurement Manual.

6. Liability of the Supplier

The Supplier's liability under this Contract shall be as provided by the laws of the Republic of the Philippines.

If the Supplier is a joint venture, all partners to the joint venture shall be jointly and severally liable to the Procuring Entity.

Section V

Special Conditions of Contract

Special Conditions of Contract

GCC Clause	
1	**Delivery and Documents –** For purposes of the Contract, "EXW," "FOB," "FCA," "CIF," "CIP," "DDP" and other trade terms used to describe the obligations of the parties shall have the meanings assigned to them by the current edition of INCOTERMS published by the International Chamber of Commerce, Paris. The Delivery terms of this Contract shall be as follows: *[For Goods supplied from abroad, state:]* "The delivery terms applicable to the Contract are DDP delivered at **BIR – National Office, Diliman, Quezon City.** In accordance with INCOTERMS." *[For Goods supplied from within the Philippines, state:*] "The delivery terms applicable to this Contract are delivered at **BIR – National Office, Diliman, Quezon City.** Risk and title will pass from the Supplier to the Procuring Entity upon receipt and final acceptance of the Goods at their final destination." Delivery of the Goods shall be made by the Supplier in accordance with the terms specified in Section VI (Schedule of Requirements). For purposes of this Clause the Procuring Entity's Representative at the Project Site is ***Chief, Taxpayer Service Programs & Monitoring Division.*** **Incidental Services –** The Supplier is required to provide all of the following services, including additional services, if any, specified in Section VI. Schedule of Requirements: *Select appropriate requirements and delete the rest.* a. performance or supervision of on-site assembly and/or start-up of the supplied Goods; b. furnishing of tools required for assembly and/or maintenance of the supplied Goods; c. furnishing of a detailed operations and maintenance manual for each appropriate unit of the supplied Goods; d. performance or supervision or maintenance and/or repair of the supplied Goods, for a period of time agreed by the parties, provided that this service shall not relieve the Supplier of any warranty obligations under this Contract; and e. training of the Procuring Entity's personnel, at the Supplier's plant and/or on-site, in assembly, start-up, operation, maintenance, and/or repair of the supplied Goods. f. *[See Terms of Reference]*

Special Conditions of Contract

	The Contract price for the Goods shall include the prices charged by the Supplier for incidental services and shall not exceed the prevailing rates charged to other parties by the Supplier for similar services. **Spare Parts –** The Supplier is required to provide all of the following materials, notifications, and information pertaining to spare parts manufactured or distributed by the Supplier: a. such spare parts as the Procuring Entity may elect to purchase from the Supplier, provided that this election shall not relieve the Supplier of any warranty obligations under this Contract; and b. in the event of termination of production of the spare parts: I. advance notification to the Procuring Entity of the pending termination, in sufficient time to permit the Procuring Entity to procure needed requirements; and II. following such termination, furnishing at no cost to the Procuring Entity, the blueprints, drawings, and specifications of the spare parts, if requested. The spare parts and other components required are listed in **Section VI (Schedule of Requirements)** and the cost thereof are included in the contract price. The Supplier shall carry sufficient inventories to assure ex-stock supply of consumable spare parts or components for the Goods for a period of [*see Terms of Reference*]. Spare parts or components shall be supplied as promptly as possible, but in any case, within [*see Terms of Reference*] months of placing the order. **Packaging –** The Supplier shall provide such packaging of the Goods as is required to prevent their damage or deterioration during transit to their final destination, as indicated in this Contract. The packaging shall be sufficient to withstand, without limitation, rough handling during transit and exposure to extreme temperatures, salt and precipitation during transit, and open storage. Packaging case size and weights shall take into consideration, where appropriate, the remoteness of the Goods' final destination and the absence of heavy handling facilities at all points in transit.

Special Conditions of Contract

	The packaging, marking, and documentation within and outside the packages shall comply strictly with such special requirements as shall be expressly provided for in the Contract, including additional requirements, if any, specified below, and in any subsequent instructions ordered by the Procuring Entity. The outer packaging must be clearly marked on at least four (4) sides as follows: Name of the Procuring Entity Name of the Supplier Contract Description Final Destination Gross weight Any special lifting instructions Any special handling instructions Any relevant HAZCHEM classifications A packaging list identifying the contents and quantities of the package is to be placed on an accessible point of the outer packaging if practical. If not practical the packaging list is to be placed inside the outer packaging but outside the secondary packaging. **Transportation –** Where the Supplier is required under Contract to deliver the Goods CIF, CIP, or DDP, transport of the Goods to the port of destination or such other named place of destination in the Philippines, as shall be specified in this Contract, shall be arranged and paid for by the Supplier, and the cost thereof shall be included in the Contract Price. Where the Supplier is required under this Contract to transport the Goods to a specified place of destination within the Philippines, defined as the Project Site, transport to such place of destination in the Philippines, including insurance and storage, as shall be specified in this Contract, shall be arranged by the Supplier, and related costs shall be included in the contract price. Where the Supplier is required under Contract to deliver the Goods CIF, CIP or DDP, Goods are to be transported on carriers of Philippine registry. In the event that no carrier of Philippine registry is available, Goods may be shipped by a carrier which is not of Philippine registry provided that the Supplier obtains and presents to the Procuring Entity certification to this effect from the nearest Philippine consulate to the port of dispatch. In the event that carriers of Philippine registry are available but their schedule delays the Supplier in its performance of this Contract the period from when the Goods were first ready for shipment and the actual date of shipment the period of delay will be considered force majeure.

Special Conditions of Contract

	The Procuring Entity accepts no liability for the damage of Goods during transit other than those prescribed by INCOTERMS for DDP deliveries. In the case of Goods supplied from within the Philippines or supplied by domestic Suppliers risk and title will not be deemed to have passed to the Procuring Entity until their receipt and final acceptance at the final destination.
	Intellectual Property Rights – The Supplier shall indemnify the Procuring Entity against all third-party claims of infringement of patent, trademark, or industrial design rights arising from use of the Goods or any part thereof.
2.2	Please refer to **Section VII. TERMS OF PAYMENT** of the approved **TERMS OF REFERENCE.**
4	The inspections and tests that will be conducted are: **c/o Inspection Committee**

Section VI. Schedule of Requirements

Procurement of BIR Minor Forms for the Calendar Year 2024 (1 Lot)

The delivery schedule expressed as weeks/months stipulates hereafter a delivery date which is the date of delivery to the project site.

Item Number	Description	Quantity	Delivery Schedule
1	Procurement of BIR Minor Forms for the Calendar Year 2024 (1 Lot)	1 Lot	Within forty-five calendar days (45 CD) from receipt of Notice to Proceed (NTP)

Submitted by:

_____
Signature Over Printed Name of the Authorized Signatory

_____
Position

_____
Company Name

_____
Date

Section VII

Technical Specifications

SECTION VII - TECHNICAL SPECIFICATIONS CHECKLIST

Procurement of BIR Minor Forms for the Calendar Year 2024 (1 Lot)

ITEM	SPECIFICATIONS	STATEMENT OF COMPLIANCE (Comply/Not Comply)
II.	**SPECIFICATIONS**	
	2.1 BIR Form No. 2303e - Certificate of Registration (for IRIS) Size : 8 ¼" across x 11 2/3" down No. of Pages : One (1) side printing Paper Stock : Book paper, 120 gsm (unprinted) Color : Light Blue Green (1 x 0) Binding : Loose-leaf; 500 pieces/bundle; 2 bundles/box Quantity : **2,000 boxes** **2.2 Notice to Issue Invoice** Size : 11 ¼" across x 8" down No. of Pages : One (1) side printing Paper Stock : Clay coated board, 280 gsm (unprinted) Color : With 1 side UV lamination; full color; Green Pantone 375C (for background only) Binding : Loose; 250 pieces/bundle Quantity : **400,000 pieces (1,600 bundles)** ***Note: Above enumerated specifications are subject to change depending on the latest approved manuscripts of the form.***	
III. SCOPE OF SERVICES		
	3.1 The **CONTRACTOR** shall ensure the correctness of the content of the forms at all times as specified in the manuscripts (Annexes "A1 to A2"). Within three (3) calendar days from receipt of the manuscript in soft and/or hard copies, the **CONTRACTOR** shall provide the Taxpayer Service Programs and Monitoring Division (TSPMD) with samples of each form, the actual printed form and/or digital layout of all forms for approval by the Assistant Commissioner-Client Support Service (ACIR-CSS) as recommended by the Chief-TSPMD. 3.2 The **CONTRACTOR** shall use a high grade quality paper as specified in Section II of this TOR and shall be tested and certified by the Forest Products Research & Development Institute, DOST at the expense of the **CONTRACTOR.** For this purpose, the **CONTRACTOR** shall provide the Procurement Division with properly labeled 25 blank sheets of each form, within three (3) working days from receipt of NTP. The DOST testing result shall be equal to or higher than the BIR requirement. In the event that the result is lower than the BIR requirement, the **CONTRACTOR** shall provide another 25 blank sheets of properly labeled paper as specified in Section II within two (2) working days from receipt of testing result. 3.3 The **CONTRACTOR** shall print the forms as specified in Section II of this document and based on the actual printed form or digital layout for each form (Annexes "A1 to A2") as approved by ACIR-CSS. 3.4 The **CONTRACTOR** shall deliver the printed forms on or before the date specified in Section I of this TOR to the Warehousing and Distribution Section of Property Division, BIR National Office. 3.5 The **CONTRACTOR** shall turn over all proofs, films and/or plates (whichever is applicable) to the ACIR-CSS through Chief-TSPMD within five (5) working days after the complete delivery of all the forms specified in Section II. A Certificate of Acceptance and Custody shall be issued by the Chief-TSPMD, certified true and correct by the ACIR-CSS.	

Procurement of BIR Minor Forms for the Calendar Year 2024 (1 Lot)

<table>
<tr><th>ITEM</th><th>SPECIFICATIONS</th><th>STATEMENT OF COMPLIANCE (Comply/Not Comply)</th></tr>
<tr><td colspan="3">IV. RESPONSIBILITIES OF THE BIR</td></tr>
<tr><td></td><td>4.1 The Procurement Division shall provide the ACIR-CSS and Chief-TSPMD a copy of the Notice to Proceed (NTP) duly received by the CONTRACTOR.

4.2 TSPMD shall provide the CONTRACTOR with a manuscript of each form in soft and/or hard copies within three (3) calendar days from receipt of the NTP by the CONTRACTOR.

4.3 ACIR-CSS shall approve and affix her signature and date of approval in the sample actual printed form and digital layout within three (3) calendar days from receipt thereof.

4.4 The Procurement Division shall acknowledge receipt of 25 blank sheets of properly labeled paper from the CONTRACTOR, and submit the same to the Department of Science & Technology (DOST) for testing. The Procurement Division shall also secure/pick-up the DOST testing result as scheduled, and shall immediately notify the CONTRACTOR and TSPMD of its release.</td><td></td></tr>
<tr><td colspan="2">V. SERVICE LEVEL AGREEMENT</td><td></td></tr>
<tr><td></td><td>The BIR shall maintain a Service Level Agreement (SLA) with the CONTRACTOR that provides a provision for liquidated damages for their non-compliance.
<table>
<tr><th>CRITERIA</th><th>DELIVERABLES</th><th>LIQUIDATED DAMAGES</th></tr>
<tr><td>5.1 Actual Printed Form or Digital Layout</td><td>The CONTRACTOR shall provide TSPMD with the sample of actual printed form or digital layout for each form within three (3) calendar days from receipt of the manuscript in soft and/or hard copies from TSPMD. (Section 3.1)</td><td>1/10th of 1% of the Total Contract Price for every day of delay</td></tr>
<tr><td rowspan="3">5.2 Paper Quality</td><td>The CONTRACTOR shall use a high grade quality paper. (Section 3.2)</td><td>50% of the Total Contract Price of the particular form delivered.</td></tr>
<tr><td>The CONTRACTOR shall provide the Procurement Division with properly labeled 25 blank sheets of each form, within three (3) working days from receipt of NTP. (Section 3.2)</td><td>1/10th of 1% of the Total Contract Price for every day of delay</td></tr>
<tr><td>In the event that the DOST testing result is lower than the BIR requirement, the CONTRACTOR shall provide another 25 blank sheets of properly labeled paper within two (2) working days from receipt of testing result. (Section 3.2)</td><td>1/10th of 1% of the Total Contract Price for every day of delay</td></tr>
<tr><td>5.3 Delivery Period</td><td>The CONTRACTOR shall deliver the printed forms on or before the date specified in Section I of this TOR to the Warehousing and Distribution Section of Property Division, BIR National Office. (Section 3.4)</td><td>1/10th of 1% of the Contract Price of the particular form undelivered per day of delay.</td></tr>
</table></td><td></td></tr>
</table>

ITEM	SPECIFICATIONS	STATEMENT OF COMPLIANCE (Comply/Not Comply)
	5.4 Proofs, Films and/or Plates: The **CONTRACTOR** shall turn over all proofs, films and/or plates (whichever is applicable) to the ACIR-CSS through Chief-TSPMD within five (5) working days after the complete delivery of all the forms specified in Section II. (Section 3.5) — $1/10^{th}$ of 1% of the Total Contract Price of the particular form for every day of delay The BIR reserves the right not to accept and/or pay for the printed/delivered BIR forms if they do not conform to the approved quantity, version and specifications.	
VI.	**WARRANTIES OF THE CONTRACTOR**	
	6.1 The **CONTRACTOR** warrants that it shall conform strictly to the terms and conditions of this Terms of Reference, its attachments and other bid documents. 6.2 The **CONTRACTOR** shall coordinate only with authorized and/or designated BIR personnel in the performance of its tasks/services. 6.3 The **CONTRACTOR** shall neither assign, transfer, pledge, nor subcontract any part or interest therein, except with the prior written approval of the BIR. 6.4 The **CONTRACTOR** agrees to hold the Proprietary Information in strict confidence. The **CONTRACTOR** furthermore agrees not to reproduce, transcribe, or disclose the Proprietary Information to third parties without prior written approval of the BIR. The **CONTRACTOR** shall not print, sell, distribute in excess of the contracted volume. 6.5 The **CONTRACTOR** shall submit one (1) year warranty security in the form of special bank guarantee equivalent to one percent (1%) of the total contract price. The warranty shall commence on the acceptance date indicated in the Certificate of Acceptance. The said amount shall only be released after the lapse of warranty period or after consumption thereof. Provided, however, that BIR Minor Forms delivered are free from latent defects and all the conditions imposed under the contract have been fully met.	
VII.	**TERMS OF PAYMENT**	
	7.1 The **CONTRACTOR** shall submit Invoice within fifteen (15) calendar days after completion of delivery of the printed BIR Minor Forms. 7.2 Payment to the **CONTRACTOR** shall be subject to the required Creditable Expanded Withholding Tax (CEWT) of two percent (2%) and Creditable Withholding Tax on VAT of five percent (5%). 7.3 Payment shall be made to the CONTRACTOR within a reasonable time from submission to concerned BIR Offices of the documentary requirements such as, but not limited to the following: 7.3.1 Transmittal Letter by TSPMD to the **CONTRACTOR** re: manuscript in soft and/or hard copy; 7.3.2 Receiving copy of the **CONTRACTOR**'s transmittal of actual printed form or digital layout for approval by the ACIR-CSS; 7.3.3 Approved copy of the final actual printed form or digital layout; 7.3.4 Transmittal Letter of the **CONTRACTOR** addressed to the Chief, Procurement Division re: properly labeled 25 blank sheets of each form for DOST testing; 7.3.5 DOST Certificate/Testing Result; 7.3.6 Original Delivery Receipts; 7.3.7 Original Copy of Dealer's/Supplier's Invoice showing the quantity, description of the forms, unit and total value, duly signed by the dealer or his representative, and indicating receipt by the proper agency official of forms delivered; 7.3.8 Request for Inspection - Forms; 7.3.9 Certificate of Acceptance issued by the Chief-TSPMD and certified true and correct by the ACIR-CSS;	

Procurement of BIR Minor Forms for the Calendar Year 2024 (1 Lot)

ITEM	SPECIFICATIONS	STATEMENT OF COMPLIANCE (Comply/Not Comply)
	7.3.10 Inspection and Acceptance Committee (IAC) Report; 7.3.11 Request for Inspection – turn over of proofs, films and/or plates whichever is applicable; 7.3.12 Certificate of Acceptance and Custody issued by the Chief-TSPMD and certified true and correct by the ACIR-CSS; 7.3.13 Warranty Security (Special Bank Guarantee); 7.3.14 Letter of Introduction (LOI), if applicable; and 7.3.15 All other required documents based on existing issuances. 7.4 No advance payment shall be made as provided in Section 88 of PD 1445.	
VIII.	**PRE-TERMINATION OF CONTRACT**	
	8.1 The Contract for the **Procurement of BIR Minor Forms for the Calendar Year 2024 (1 Lot)** may be pre-terminated by the BIR for any violation of the terms of contract. In case of pre-termination, the **CONTRACTOR** shall be informed by the BIR within thirty (30) days prior to such pre-termination. 8.2 In case of pre-termination of contract, the **CONTRACTOR** shall be liable to additional liquidated damages equivalent to one percent (1%) of the contract price as provided by the Government Accounting Manual (GAM) and forfeiture of Performance Security. 8.3 The BIR shall have the right to blacklist the **CONTRACTOR** in case of pre-termination of contract.	
MUST CONFORM TO THE ATTACHED TERMS OF REFERENCE (TOR)		

I hereby certify that the statement of compliance to the foregoing technical specifications are true and correct, otherwise, if found to be false either during bid evaluation or post-qualification, the same shall give rise to automatic disqualification of our bid.

_____	_____	_____
Name of Company/Bidder	Signature Over Printed Name of Authorized Representative	Date

Section VIII

Checklist of Technical and Financial Documents

Checklist of Technical and Financial Documents

I. TECHNICAL COMPONENT ENVELOPE (ORIGINAL AND DUPLICATE)

Class "A" Documents

Legal Documents

☐ (a) Valid PhilGEPS Registration Certificate (Platinum Membership) (all pages)

Technical Documents

☐ (b) Sworn **Statement** of the prospective bidder of all its ongoing government and private contracts **(Annex "A")**, including contracts awarded but not yet started, if any, whether similar or not similar in nature and complexity to the contract to be bid **within the last three (3) years from the bidding date**;

☐ (c) **Sworn Statement** of the bidder's Single Largest Completed Contract (SLCC) similar to the contract to be bid **(Annex "B")**, equivalent to at least fifty percent (50%) of the Approved Budget for the Contract (ABC) **within the last three (3) years from the bidding date,** in the amount of:

SLCC = Php 5,952,000.00 x 50% = Php 2,976,000.00

For this purpose, contracts similar to the Project shall be ***Printing of Forms***

The **SWORN STATEMENT** shall be supported with:

1. **For Government**

   a) Approved & duly notarized contract **or** approved Purchase Order **or** Approved Job Order; **and**

   b) Certificate of Completion and/or Acceptance issued by the Contracting Agency's Head or his duly authorized representative **or**
   Official Receipt (OR) or Sales Invoice (SI) issued for the contract.

2. **For Private**

   a) Approved & duly notarized contract **or** approved Purchase Order **or** Approved Job Order; **and**

   b) Certificate of Completion and/or Acceptance issued by the Contracting Agency's Head or his duly authorized representative **or**
   Official Receipt (OR) or Sales Invoice (SI) issued for the contract.

Or

Any equivalent document issued for the contract signed by the Contracting Agency's Head or his duly authorized representative.

☐ (d) Bid Security:

a. Sworn Bid Securing Declaration; **OR**

b. Any of the following forms:

Form of Security	**Amount not less than the required % of the Approved Budget for the Contract (ABC)**
1) Cash or cashier's/manager's check issued by a Universal or Commercial Bank The Bid Security shall be payable to **"BUREAU OF INTERNAL REVENUE"**	Two percent (2%) **₱ 119,040.00**
2) Bank draft/guarantee or irrevocable letter of credit issued by a Universal or Commercial Bank. Provided, however, that it shall be confirmed or authenticated by a Universal or Commercial bank, if issued by a foreign bank.	
3) Surety Bond callable upon demand issued by a surety or insurance company duly certified by the Insurance Commission as authorized to issue such security	Two percent (5%) **₱ 297,600.00**

☐ (e) Conformity with the Technical Specifications:

e.1 Duly accomplished Section VI- Schedule of Requirements;
e.2 Duly accomplished Section VII- Technical Specifications

☐ (f) Original duly signed Omnibus Sworn Statement (OSS) together with Authority of the signatory/representative **(Secretary's Certificate)**

Or

Original duly signed Omnibus Sworn Statement (OSS) together with Authority of the signatory/representative **(Special Power of Attorney)**

☐ (g) Sworn Statement from the Corporate Secretary as to the list of stockholders, number of shares owned and percentage of shareholdings executed within three (3) months before the date of the bidding.

Note:

- ***Sworn/ under oath statement/affidavit shall be executed by the duly authorized signatory, with the corresponding documentary stamps and latest notarization.***
- ***All notarization shall be made in accordance with the provisions of the 2004 Rules on Notarial Practice as prescribed by the Supreme Court of the Philippines.***

Financial Documents

☐ (h) The Bidder's audited financial statements, showing, among others, the Supplier's total and current assets and liabilities, stamped "received" by the BIR or its duly accredited and authorized institutions, for the preceding calendar year which should not be earlier than two (2) years from the date of bid submission;
(Taxable Years 2023 and 2022)

Note:

The Audited financial statement shall be prepared, signed and certified by a tax practitioner duly accredited by the BIR as per Sec. 6 of Revenue Regulations (RR) No. 14-2010 dated Nov. 5, 2010 amending RR 11-2006 and 4-2010.

☐ (i) Bidder's computation of Net Financial Contracting Capacity (NFCC);

NFCC = 100% of the ABC = **Php 5,952,000.00**

OR

A committed Line of Credit from a Universal or Commercial Bank in lieu of its NFCC computation.

CLC = 10% of the ABC = **Php 595,200.00**

Class "B" Documents

☐ (j) If applicable, a duly signed joint venture agreement (JVA) in case the joint venture is already in existence;

OR

duly notarized statements from all the potential joint venture partners stating that they will enter into and abide by the provisions of the JVA in the instance that the bid is successful.

Failure to enter into a joint venture in the event of a contract award shall be ground for the forfeiture of the bid security.

II. FINANCIAL COMPONENT ENVELOPE (ORIGINAL AND DUPLICATE)

☐ (a) Original and Duplicate copies of Financial Bid Form duly signed and accomplished by the authorized signatory of the Bidder;

☐ (b) Original and Duplicate copies of duly signed and accomplished Price Schedule(s):

- For Goods Offered from Within the Philippines

AND/OR

- For Goods Offered from Abroad

☐ (c) Recurring and the maintenance costs, if applicable

☐ (d) VAT and all other taxes included in the Bid Price

☐ (e) Bid valid for One hundred twenty (120) calendar days, after the date of the opening of bids as prescribed by the BIR pursuant to the bid price form.

☐ (f) Price quotation in Philippine Currency.

☐ (g) Price quotation in an amount that is certain and definite.

☐ (h) Bid within the Approved Budget for the Contract (ABC)

ABC= Php 5,952,000.00

OTHERS

SAMPLE FORMS

Envelope 1 – Technical Component

- ANNEX A – Sworn statement of all its ongoing government and private contracts for the *last eight (3) years from the bidding date* including contracts awarded but not yet started, if any

- ANNEX B – Sworn statement of Single Largest Completed Contract (SLCC) similar to the contract to be bid

- Net Financial Contracting Capacity (NFCC) ***OR*** Committed Line of Credit (CLC)

- Bid Securing Declaration Form

- Bidder's Omnibus Sworn Statement
    - Secretary's Certificate; or
    - Special Power of Attorney, whichever is applicable

- Sworn statement from the Corporate Secretary as to the list of stockholders, number of shares owned and percentage of shareholdings executed within three (3) months before the date of the bidding.

Envelope 2 – Financial Component

- Bid Form
- For Goods Offered from Within the Philippines
- For Goods Offered from Abroad

Bureau of Internal Revenue
Diliman, Quezon City

Annex A
Project Reference Number
Name of Project
Location of the Project

BIR Prescribed Format Based on 2016 Revised IRR of R.A. 9184

List of all <u>Ongoing</u> Government & Private Contracts including contracts awarded but not yet started, if any, whether similar or not similar in nature and complexity to the contract to be bid, within the last three (3) years, from the bidding date

Business Name : _____
Business Address : _____

Name of Contract/ Project Cost	a. Owner's Name (Private) & Contact Person / HOPE's Name (Govt.) & Contact Person b. Address c. Telephone Nos.	Nature of Work	Bidder's Role		a. Date Awarded b. Date Started c. Date of Completion	% of Accomplishment		Value of Outstanding Works / Undelivered Portion	"Similar" or "not similar" in nature and in complexity
			Description	%		Planned	Actual		
<u>Government (HOPE's Name)</u>									
[Name of Contract & Project Cost]									
<u>Private (Owner's Name)</u>									
[Name of Contract & Project Cost]									
						Total Cost Value of Outstanding Services/Undelivered Portion			

IN WITNESS WHEREOF, I have hereunto set my hand this _____ day of _____, 20__, in the City_____, Philippines.

_____
Affiant

SUBSCRIBED AND SWORN to before me this ___ day of *[month] [year]* at *[place of execution]*, Philippines. Affiant/s is/are personally known to me and was/were identified by me through competent evidence of identity as defined in the 2004 Rules on Notarial Practice (A.M. No. 02-8-13-SC). Affiant/s exhibited to me his/her *[insert type of government identification card used]*, with his/her photograph and signature appearing thereon, with no. _____ and his/her Community Tax Certificate No. _____ issued on _____ at _____.

Witness my hand and seal this ___ day of *[month] [year].*

_____
Notary Public

NAME OF NOTARY PUBLIC
Serial No. of Commission _____
Notary Public for _____ until _____
Roll of Attorneys No. _____
PTR No. __, *[date issued], [place issued]*
IBP No. __, *[date issued], [place issued]*

AFFIX DOCUMENTARY STAMP

Doc. No. _____;
Page No. _____;
Book No. _____;
Series of 20_____

Note:

1. ***Sworn/under oath statement/affidavit shall be executed by the duly authorized signatory, with the corresponding documentary stamps and latest notarization.***
2. ***All notarization shall be made in accordance with the provisions of the 2004 Rules on Notarial Practice as prescribed by the Supreme Court of the Philippines.***

Bureau of Internal Revenue
Diliman, Quezon City

Annex B
Project Reference Number
Name of Project
Location of the Project

BIR Prescribed Format Based on 2016 Revised IRR of R.A. 9184

Statement of Single Largest Completed Contract similar to the contract to be bid

Business Name : _____
Business Address : _____

Name of Contract	a. Owner's Name (Private) & Contact Person / HOPE's Name (Govt.) & Contact Person b. Address c. Telephone Nos.	Nature of Work	Bidder's Role		a. Amount at Award b. Amount at Completion c. Contract Duration	a. Date Awarded b. Contract Effectivity c. Date Completed d. Date of Acceptance
			Description	%		
Government (HOPE's Name)/Private (Owner's Name)						

Note: This **sworn** statement shall be supported with:

1. For Government
   a) Approved & duly notarized contract; **or** Approved Purchase Order; **or** Approved Job Order; **and**
   b) Certificate of Completion and/or Acceptance issued by the Contracting Agency's Head or his duly authorized representative **or** Official Receipt (OR) **or** Sales Invoice (SI) issued for the contract.

2. For Private
   a) Approved & duly notarized contract; **or** Approved Purchase Order; **or** Approved Job Order; **and**
   b) Certificate of Completion and/or Acceptance issued by the Contracting Agency's Head or his duly authorized representative **or** Official Receipt (OR) **or** Sales Invoice (SI) issued for the contract.

   OR

   Any equivalent document issued for the contract signed by the Contracting Agency's Head or his duly authorized representative

IN WITNESS WHEREOF, I have hereunto set my hand this _____ day of _____, 20__, in the City_____, Philippines.

_____
Affiant

SUBSCRIBED AND SWORN to before me this __ day of *[month] [year]* at *[place of execution]*, Philippines. Affiant/s is/are personally known to me and was/were identified by me through competent evidence of identity as defined in the 2004 Rules on Notarial Practice (A.M. No. 02-8-13-SC). Affiant/s exhibited to me his/her *[insert type of government identification card used]*, with his/her photograph and signature appearing thereon, with no. _____ and his/her Community Tax Certificate No. _____ issued on _____ at _____.

Witness my hand and seal this ___ day of *[month] [year].*

_____
Notary Public

AFFIX
DOCUMENTARY
STAMP

NAME OF NOTARY PUBLIC
Serial No. of Commission _____
Notary Public for _____ until _____
Roll of Attorneys No. _____
PTR No. __, *[date issued], [place issued]*
IBP No. __, *[date issued], [place issued]*

Doc. No. _____;
Page No. _____;
Book No. _____;
Series of 20_____

Note:

1. ***Sworn/under oath statement/affidavit shall be executed by the duly authorized signatory, with the corresponding documentary stamps and latest notarization.***
2. ***All notarization shall be made in accordance with the provisions of the 2004 Rules on Notarial Practice as prescribed by the Supreme Court of the Philippines.***

Name of the Procuring Entity

Project Reference Number
Name of the Project
Location of the Project

Standard Form Number: SF-GOOD-14
Revised based on 2016 Revised IRR of R.A. 9184

FINANCIAL DOCUMENTS FOR ELIGIBILITY CHECK

A. Summary of the Applicant Supplier's/Distributor's/Manufacturer's assets and liabilities on the basis of the attached income tax return and audited financial statement, stamped "RECEIVED" by the Bureau of Internal Revenue or BIR authorized collecting agent, for the immediately preceding year and a certified copy of Schedule of Fixed Assets particularly the list of construction equipment.

		Year 20__
1.	Total Assets	
2.	Current Assets	
3.	Total Liabilities	
4.	Current Liabilities	
5.	Net Worth (1-3)	
6.	Net Working Capital (2-4)	

B. The Net Financial Contracting Capacity (NFCC) based on the above data is computed as follows:

NFCC = (Current assets minus current liabilities) X 15 Minus the value of all outstanding or uncompleted portions of the projects under ongoing contracts, including awarded contracts yet to be started coinciding with the contract for this project."

NFCC = P _____

or

Committed Line of Credit from a Universal or Commercial Bank which shall be at least equal to ten percent (10%) corresponding to the Approved Budget for the Contract to be bid. If issued by a foreign Universal or Commercial Bank, it shall be confirmed or authenticated by a local Universal or Commercial Bank.

Name of Bank: _____ Amount: _____

Herewith attached are certified true copies of the income tax return and audited financial statement: stamped "RECEIVED" by the BIR or BIR authorized collecting agent for the immediately preceding year.

Submitted by:

_____
Name of Supplier / Distributor / Manufacturer

_____
Signature of Authorized Representative

Date : _____

NOTE:
1. If Partnership or Joint Venture, each Partner or Member Firm of Joint Venture shall submit the above requirements.

The above information are among the financial documents required for Eligibility Check. Together with the legal and technical documents required, the financial documents shall be placed inside the Eligibility Envelope and submitted to the BAC on or before the deadline for the submission and receipt of Eligibility Envelopes.

Bid Securing Declaration Form

[shall be submitted with the Bid if bidder opts to provide this form of bid security]

REPUBLIC OF THE PHILIPPINES)
CITY OF _____) S.S.

BID SECURING DECLARATION
Project Identification No.: *[Insert number]*

To: *[Insert name and address of the Procuring Entity]*

I/We, the undersigned, declare that:

1. I/We understand that, according to your conditions, bids must be supported by a Bid Security, which may be in the form of a Bid Securing Declaration.

2. I/We accept that: (a) I/we will be automatically disqualified from bidding for any procurement contract with any procuring entity for a period of two (2) years upon receipt of your Blacklisting Order; and, (b) I/we will pay the applicable fine provided under Section 6 of the Guidelines on the Use of Bid Securing Declaration, within fifteen (15) days from receipt of the written demand by the procuring entity for the commission of acts resulting to the enforcement of the bid securing declaration under Sections 23.1(b), 34.2, 40.1 and 69.1, except 69.1(f),of the IRR of RA No. 9184; without prejudice to other legal action the government may undertake.

3. I/We understand that this Bid Securing Declaration shall cease to be valid on the following circumstances:

    a. Upon expiration of the bid validity period, or any extension thereof pursuant to your request;
    b. I am/we are declared ineligible or post-disqualified upon receipt of your notice to such effect, and (i) I/we failed to timely file a request for reconsideration or (ii) I/we filed a waiver to avail of said right; and
    c. I am/we are declared the bidder with the Lowest Calculated Responsive Bid, and I/we have furnished the performance security and signed the Contract.

IN WITNESS WHEREOF, I/We have hereunto set my/our hand/s this ____ day of *[month] [year]* at *[place of execution]*.

[Insert NAME OF BIDDER OR ITS AUTHORIZED REPRESENTATIVE]
[Insert signatory's legal capacity]
Affiant

ACKNOWLEDGMENT

SUBSCRIBED AND SWORN to before me this __ day of *[month] [year]* at *[place of execution]*, Philippines. Affiant/s is/are personally known to me and was/were identified by me through competent evidence of identity as defined in the 2004 Rules on Notarial Practice (A.M. No. 02-8-13-SC). Affiant/s exhibited to me his/her *[insert type of government identification card used]*, with his/her photograph and signature appearing thereon, with no. _____

Witness my hand and seal this ___ day of *[month] [year].*

NAME OF NOTARY PUBLIC

Serial No. of Commission _____
Notary Public for _____ until _____
Role of Attorneys No. _____
PTR No. _____, *[date issued], [place issued]*
IBP No. _____, *[date issued], [place issued]*
Doc. No. _____
Page No. _____
Book No. _____
Series of _____.

AFFIX
DOCUMENTARY
STAMP

AUTHORITY OF SIGNATORY

SECRETARY'S CERTIFICATE

I, ***<NAME OF CORPORATE SECRETARY>***, a duly elected and qualified Corporate Secretary of ***<NAME OF COMPANY>***, a corporation duly organized and existing under and by virtue of the law of the PHILIPPINES, DO HEREBY CERTIFY, that:

I am familiar with the facts herein certified and duly authorized to certify the same;

At the regular meeting of the Board of Directors of the said Corporation duly convened and held on DATE at which meeting a quorum was present and acting throughout, the following resolutions were approved, and the same have not been annulled, revoked and amended in any way whatever and are in full force and effect on the date hereof:

RESOLVED, that ***<NAME OF CORPORATE SECRETARY>*** be, as it hereby is, authorized to participate in the bidding of ***<NAME OF PROJECT>*** (Project ID-No.) _____ by the BIR; and that if awarded the project shall enter into a contract with the BIR; and in connection therewith hereby appoint ***<COMPANY'S OFFICER>***, acting as duly authorized representative of ***<COMPANY'S NAME>***, and granted full power and authority to do, execute and perform any and all acts necessary to participate, submit the bid, and to sign and execute the ensuing contract for ***<COMPANY'S NAME>*** in the bidding as fully and effectively as the POSITION might do if personally present with full power of substitution and revocation and hereby satisfying and confirming all that my said representative shall lawfully do or cause to be done by virtue hereof;

Name	**Designation**	**Specimen Signature**	**Specimen Initial**

RESOLVED FURTHER THAT, the ***<COMPANY'S NAME>*** hereby authorizes its President to:

(1) execute a waiver of jurisdiction whereby the ***<COMPANY'S NAME>*** hereby submits itself to the jurisdiction of he Philippine government and hereby waives its right to question the jurisdiction of the Philippine courts;

(2) execute a waiver that the ***<COMPANY'S NAME>*** shall not seek and obtain writ of injunctions or prohibition or restraining order against the BIR or any other agency in connection with this project to prevent and restrain the bidding procedures related thereto, the negotiating of and award of a contract to a successful bidder, and the carrying out of the awarded contract.

WITNESS the signature of the undersigned as such officer of the said ***<COMPANY'S NAME>*** this ***<DATE OF EXECUTION>***.

_____
(Corporate Secretary)

The above information are among the financial documents required for Eligibility Check. Together with the legal and technical documents required, the financial documents shall be placed inside the Eligibility Envelope and submitted to the BAC on or before the deadline for the submission and receipt of Eligibility Envelopes.

REPUBLIC OF THE PHILIPPINES)
CITY OF _____)S.S.

ACKNOWLEDGMENT

SUBSCRIBED AND SWORN to before me this __ day of *[month] [year]* at *[place of execution]*, Philippines. Affiant/s is/are personally known to me and was/were identified by me through competent evidence of identity as defined in the 2004 Rules on Notarial Practice (A.M. No. 02-8-13-SC). Affiant/s exhibited to me his/her *[insert type of government identification card used]*, with his/her photograph and signature appearing thereon, with no. _____

Witness my hand and seal this ___ day of *[month] [year]*.

NAME OF NOTARY PUBLIC

Serial No. of Commission _____
Notary Public for _____ until _____
Role of Attorneys No. _____
PTR No. _____, *[date issued], [place issued]*
IBP No. _____, *[date issued], [place issued]*
Doc. No. _____
Page No. _____
Book No. _____
Series of _____.

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The above information are among the financial documents required for Eligibility Check. Together with the legal and technical documents required, the financial documents shall be placed inside the Eligibility Envelope and submitted to the BAC on or before the deadline for the submission and receipt of Eligibility Envelopes.

REPUBLIC OF THE PHILIPPINES)
CITY OF _____)S.S.

AUTHORITY OF SIGNATORY

SPECIAL POWER OF ATTORNEY

I, _____, President of _____, a corporation incorporated under the laws of _____ with its registered office at _____, by virtue of Board Resolution No. _____ dated _____, has made, constituted and appointed _____ true and lawful attorney, for it and its name, place and stead, to do, execute and perform any and all acts necessary to participate, submit the bid, and to sign and execute the ensuing contract in the bidding of _____ as fully and effectively as corporation might do if personally present with full power of substitution and revocation and hereby confirming all that said representative shall lawfully do or cause to be done by virtue hereof.

IN WITNESS WHEREOF, I have hereunto set may hand this _____ day of _____, 20____ at _____.

Signed in the Presence of:

_____ _____

ACKNOWLEDGMENT

SUBSCRIBED AND SWORN to before me this __ day of *[month] [year]* at *[place of execution]*, Philippines. Affiant/s is/are personally known to me and was/were identified by me through competent evidence of identity as defined in the 2004 Rules on Notarial Practice (A.M. No. 02-8-13-SC). Affiant/s exhibited to me his/her *[insert type of government identification card used]*, with his/her photograph and signature appearing thereon, with no. _____

Witness my hand and seal this ___ day of *[month] [year].*

NAME OF NOTARY PUBLIC

Serial No. of Commission _____
Notary Public for _____ until _____
Role of Attorneys No. _____
PTR No. _____, *[date issued], [place issued]*
IBP No. _____, *[date issued], [place issued]*
Doc. No. _____
Page No. _____
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Series of _____.

AFFIX DOCUMENTARY STAMP

The above information are among the financial documents required for Eligibility Check. Together with the legal and technical documents required, the financial documents shall be placed inside the Eligibility Envelope and submitted to the BAC on or before the deadline for the submission and receipt of Eligibility Envelopes.

REPUBLIC OF THE PHILIPPINES)
CITY OF _____)S.S.

A F F I D A V I T

I, <***NAME OF AFFIANT***>, <***STATE NATIONALITY***> of legal age, <***STATE STATUS***>, after having been duly sworn in accordance with law, do hereby depose and state that:

That I am the duly elected and qualified Corporate Secretary of <***NAME OF COMPANY***> , a corporation duly organized and existing under and by virtue of the law of the Philippines with office address at <***INSERT COMPANY ADDRESS***>

That the lists of stockholders are:

NAME OF STOCKHOLDER	NO. OF SHARES	PERCENTAGE OF SHAREHOLDING
1. _____	_____	_____
2. _____	_____	_____
3. _____	_____	_____

That I am executing this affidavit as part of the bidding requirement of <***NAME OF COMPANY***> for the <***TITLE OF THE PROJECT (PUBLIC BIDDING NO)***>.

_____
Affiant

ACKNOWLEDGMENT

SUBSCRIBED AND SWORN to before me this __ day of *[month] [year]* at *[place of execution]*, Philippines. Affiant/s is/are personally known to me and was/were identified by me through competent evidence of identity as defined in the 2004 Rules on Notarial Practice (A.M. No. 02-8-13-SC). Affiant/s exhibited to me his/her *[insert type of government identification card used]*, with his/her photograph and signature appearing thereon with no. _____

Witness my hand and seal this ___ day of *[month] [year]*.

NAME OF NOTARY PUBLIC

Serial No. of Commission _____
Notary Public for _____ until _____
Role of Attorneys No. _____
PTR No. _____, *[date issued], [place issued]*
IBP No. _____, *[date issued], [place issued]*
Doc. No. _____
Page No. _____
Book No. _____
Series of _____.

AFFIX DOCUMENTARY STAMP

The above information are among the financial documents required for Eligibility Check. Together with the legal and technical documents required, the financial documents shall be placed inside the Eligibility Envelope and submitted to the BAC on or before the deadline for the submission and receipt of Eligibility Envelopes.

Omnibus Sworn Statement (Revised)

[shall be submitted with the Bid]

REPUBLIC OF THE PHILIPPINES)
CITY/MUNICIPALITY OF _____) S.S.

AFFIDAVIT

I, [Name of Affiant], of legal age, [Civil Status], [Nationality], and residing at [Address of Affiant], after having been duly sworn in accordance with law, do hereby depose and state that:

1. *[Select one, delete the other:]*

   [If a sole proprietorship:] I am the sole proprietor or authorized representative of [Name of Bidder] with office address at [address of Bidder];

   [If a partnership, corporation, cooperative, or joint venture:] I am the duly authorized and designated representative of [Name of Bidder] with office address at [address of Bidder];

2. *[Select one, delete the other:]*

   [If a sole proprietorship:] As the owner and sole proprietor, or authorized representative of [Name of Bidder], I have full power and authority to do, execute and perform any and all acts necessary to participate, submit the bid, and to sign and execute the ensuing contract for [Name of the Project] of the [Name of the Procuring Entity], as shown in the attached duly notarized Special Power of Attorney;

   [If a partnership, corporation, cooperative, or joint venture:] I am granted full power and authority to do, execute and perform any and all acts necessary to participate, submit the bid, and to sign and execute the ensuing contract for [Name of the Project] of the [Name of the Procuring Entity], as shown in the attached [state title of attached document showing proof of authorization (e.g., duly notarized Secretary's Certificate, Board/Partnership Resolution, or Special Power of Attorney, whichever is applicable;)];

3. [Name of Bidder] is not "blacklisted" or barred from bidding by the Government of the Philippines or any of its agencies, offices, corporations, or Local Government Units, foreign government/foreign or international financing institution whose blacklisting rules have been recognized by the Government Procurement Policy Board, **by itself or by relation, membership, association, affiliation, or controlling interest with another blacklisted person or entity as defined and provided for in the Uniform Guidelines on Blacklisting;**

4. Each of the documents submitted in satisfaction of the bidding requirements is an authentic copy of the original, complete, and all statements and information provided therein are true and correct;

5. [Name of Bidder] is authorizing the Head of the Procuring Entity or its duly authorized representative(s) to verify all the documents submitted;

6. *[Select one, delete the rest:]*

   [If a sole proprietorship:] The owner or sole proprietor is not related to the Head of the Procuring Entity, members of the Bids and Awards Committee (BAC), the Technical

Working Group, and the BAC Secretariat, the head of the Project Management Office or the end-user unit, and the project consultants by consanguinity or affinity up to the third civil degree;

[If a partnership or cooperative:] None of the officers and members of *[Name of Bidder]* is related to the Head of the Procuring Entity, members of the Bids and Awards Committee (BAC), the Technical Working Group, and the BAC Secretariat, the head of the Project Management Office or the end-user unit, and the project consultants by consanguinity or affinity up to the third civil degree;

[If a corporation or joint venture:] None of the officers, directors, and controlling stockholders of *[Name of Bidder]* is related to the Head of the Procuring Entity, members of the Bids and Awards Committee (BAC), the Technical Working Group, and the BAC Secretariat, the head of the Project Management Office or the end-user unit, and the project consultants by consanguinity or affinity up to the third civil degree;

7. *[Name of Bidder]* complies with existing labor laws and standards; and

8. *[Name of Bidder]* is aware of and has undertaken the responsibilities as a Bidder in compliance with the Philippine Bidding Documents, which includes:

    a. Carefully examining all of the Bidding Documents;
    b. Acknowledging all conditions, local or otherwise, affecting the implementation of the Contract;
    c. Making an estimate of the facilities available and needed for the contract to be bid, if any; and
    d. Inquiring or securing Supplemental/Bid Bulletin(s) issued for the *[Name of the Project]*.

9. *[Name of Bidder]* did not give or pay directly or indirectly, any commission, amount, fee, or any form of consideration, pecuniary or otherwise, to any person or official, personnel or representative of the government in relation to any procurement project or activity.

10. **In case advance payment was made or given, failure to perform or deliver any of the obligations and undertakings in the contract shall be sufficient grounds to constitute criminal liability for Swindling (Estafa) or the commission of fraud with unfaithfulness or abuse of confidence through misappropriating or converting any payment received by a person or entity under an obligation involving the duty to deliver certain goods or services, to the prejudice of the public and the government of the Philippines pursuant to Article 315 of Act No. 3815 s. 1930, as amended, or the Revised Penal Code.**

IN WITNESS WHEREOF, I have hereunto set my hand this __ day of ___, 20__ at _____, Philippines.

[Insert NAME OF BIDDER OR ITS AUTHORIZED REPRESENTATIVE]
[Insert signatory's legal capacity]
Affiant

ACKNOWLEDGMENT

SUBSCRIBED AND SWORN to before me this __ day of *[month] [year]* at *[place of execution]*, Philippines. Affiant/s is/are personally known to me and was/were identified by me through competent evidence of identity as defined in the 2004 Rules on Notarial Practice (A.M. No. 02-8-13-SC). Affiant/s exhibited to me his/her *[insert type of government identification card used]*, with his/her photograph and signature appearing thereon, with no. _____

Witness my hand and seal this ___ day of *[month] [year].*

NAME OF NOTARY PUBLIC

Serial No. of Commission _____
Notary Public for _____ until _____
Role of Attorneys No. _____
PTR No. _____, *[date issued], [place issued]*
IBP No. _____, *[date issued], [place issued]*
Doc. No. _____
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Series of _____.

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Name of Company
Address of the Company
Telephone and Fax Numbers of the Company
Website Address of the Company
E-mail Address of the Company
TIN No: _____

Bid Form

Date: _____
Project Identification No: **Public Bidding No. 2024-45 (GOODS)**

To: **THE BUREAU OF INTERNAL REVENUE**
BIR Road, Diliman, Quezon City

Having examined the Philippine Bidding Documents (PBDs) including the Supplemental or Bid Bulletin Numbers [insert numbers], the receipt of which is hereby duly acknowledged, we, the undersigned, offer to *[supply/deliver/perform]* the **PROCUREMENT OF BIR MINOR FORMS FOR THE CALENDAR YEAR 2024 (1 LOT)** in conformity with the said PBDs for the sum of ***[total Bid amount in words and figures]*** or the total calculated bid price, as evaluated and corrected for computational errors, and other bid modifications in accordance with the Price Schedules attached herewith and made part of this Bid. The total bid price includes the cost of all taxes, such as, but not limited to: *[specify the applicable taxes, e.g. (i) value added tax (VAT), (ii) income tax, (iii) local taxes, and (iv) other fiscal levies and duties]*, which are itemized herein or in the Price Schedules, to wit:

ITEM NO.	DESCRIPTION	ABC	QTY	UNIT	CURRENT MARKET PRICE	FREIGHT AND INSURANCE	OTHER INDIRECT COST	OTHER COST FACTORS (COST OF SUPPLY, INFLATION, CURRENCY VALUATION ADJUSTMENT)		SUB-TOTAL	VAT, OTHER TAXESAND/OR DUTIES APPLICABLE	TOTAL COST	UNIT COST
								%	VALUE				
(a)	(b)	(c)	(d)	(e)	(f)	(g)	(h)	(i)	(j) (f x i)	(k) (sum of f to h & j)	(l) (12% x k)	(m) (k + l)	(n) (m / d)
Contract Duration: Within forty-five (45) calendar days from receipt of the Notice to Proceed (NTP) ***ABC: Php 5,952,000.00***													
1	2303e	**₱ 3,600,000.00**	2,000	boxes	₱ _____	₱ _____	₱ _____	_____	₱ _____	₱ _____	₱ _____	₱ _____	₱ _____
2	Notice to Issue Invoice	**2,352,000.00**	400,000	pieces	_____	_____	_____	_____	_____	_____	_____	_____	_____
GRAND TOTAL CONTRACT PRICE IN FIGURES												₱ _____	
GRAND TOTAL CONTRACT PRICE IN WORDS _____													

Note:

1. ***Please specify a zero (0) or a dash (-) for the said column above if it would mean free of charge. No Price, No Zero (0) or No Dash (-) indicated in the column shall be considered "non-responsive" and automatically "disqualified".***
2. ***Bid Price per item shall not exceed the ABC per item.***

If our Bid is accepted, we undertake:

a. to deliver the goods in accordance with the delivery schedule specified in the Schedule of Requirements of the Philippine Bidding Documents (PBDs).
b. to provide a performance security in the form, amounts, and within the times specified in the PBDs.
c. to abide by this Bid for the Bid Validity Period of **one hundred twenty (120) calendar days** after the date of the opening of bids and it shall remain binding upon us at any time before the expiration of that period.

Until a formal Contract is prepared and executed, this Bid, together with your written acceptance thereof and your Notice of Award, shall be binding upon us.

We understand that you are not bound to accept the Lowest Calculated Bid or any Bid you may receive.

We certify/confirm that we comply with the eligibility requirements pursuant to the PBDs.

The undersigned is authorized to submit the bid on behalf of [name of the bidder] as evidenced by the attached [state the written authority].

We acknowledge that failure to sign each and every page of this Bid Form, including the attached Schedule of Prices, shall be **ground for the rejection of our bid.**

Name: _____

Legal capacity: _____

Signature: _____

Duly authorized to sign the Bid for and behalf of: _____ *<insert company name>*

Date: _____

Price Schedule for Goods Offered from Within the Philippines

[shall be submitted with the Bid if bidder is offering goods from within the Philippines]

For Goods Offered from Within the Philippines

Name of Bidder _____ Project ID No._____ Page ___of___

1	2	3	4	5	6	7	8	9	10
Item	Description	Country of origin	Quantity	Unit price EXW per item	Transportation and all other costs incidental to delivery, per item	Sales and other taxes payable if Contract is awarded, per item	Cost of Incidental Services, if applicable, per item	Total Price, per unit (col 5+6+7+ 8)	Total Price delivered Final Destination (col 9) x (col 4)

Name: _____

Legal Capacity: _____

Signature: _____

Duly authorized to sign the Bid for and behalf of: _*<insert company name>*_____

Price Schedule for Goods Offered from Abroad

[shall be submitted with the Bid if bidder is offering goods from Abroad]

For Goods Offered from Abroad

Name of Bidder _____ Project ID No._____ Page ___ of ___

1	2	3	4	5	6	7	8	9
Item	Description	Country of origin	Quantity	Unit price CIF port of entry (specify port) or CIP named place (specify border point or place of destination)	Total CIF or CIP price per item (col. 4 x 5)	Unit Price Delivered Duty Unpaid (DDU)	Unit price Delivered Duty Paid (DDP)	Total Price delivered DDP (col 4 x 8)

Name: _____

Legal Capacity: _____

Signature: _____

Duly authorized to sign the Bid for and behalf of: _*<insert company name>*_____

REPUBLIC OF THE PHILIPPINES
DEPARTMENT OF FINANCE
BUREAU OF INTERNAL REVENUE

TERMS OF REFERENCE

PROCUREMENT OF BIR MINOR FORMS FOR THE CALENDAR YEAR 2024 (1 LOT)

BACKGROUND

The procurement of BIR Minor Forms is in support of the collection function of the Bureau of Internal Revenue (BIR) whereby the forms serve as the instrument for collection.

Yearly, Minor Forms are being distributed to the different district offices based on the requisition of the concerned office thru Requisition and Issue Slip (RIS). The quantity of forms to be printed is computed based on the actual forms distributed/requested from the previous years and the ending balance of the forms as of December 31, 2023. The quantities were increased or decreased depending on the estimated usage for the year taking into consideration factors such as the inventory of the forms at the time of the preparation of the Terms of Reference (TOR) and implementation of IRIS-TRS among others.

I. DELIVERY SCHEDULE

The **CONTRACTOR** shall deliver to the Warehousing and Distribution Section of the Property Division, BIR National Office the BIR Minor Forms listed below **within forty-five (45) calendar days from receipt of the Notice to Proceed (NTP).**

II. SPECIFICATIONS

2.1 BIR Form No. 2303e - Certificate of Registration (for IRIS)

Size	:	8 ¼" across x 11 2/3" down
No. of Pages	:	One (1) side printing
Paper Stock	:	Book paper, 120 gsm (unprinted)
Color	:	Light Blue Green (1 x 0)
Binding	:	Loose-leaf; 500 pieces/bundle; 2 bundles/box
Quantity	:	**2,000 boxes**

2.2 Notice to Issue Invoice

Size	:	11 ¼" across x 8" down
No. of Pages	:	One (1) side printing
Paper Stock	:	Clay coated board, 280 gsm (unprinted)
Color	:	With 1 side UV lamination; full color; Green Pantone 375C (for background only)
Binding	:	Loose; 250 pieces/bundle
Quantity	:	**400,000 pieces (1,600 bundles)**

Note: Above enumerated specifications are subject to change depending on the latest approved manuscripts of the form.

III. SCOPE OF SERVICES

3.1 The **CONTRACTOR** shall ensure the correctness of the content of the forms at all times as specified in the manuscripts (Annexes "A1 to A2"). Within three (3) calendar days from receipt of the manuscript in soft and/or hard copies, the **CONTRACTOR** shall provide the Taxpayer Service Programs and Monitoring Division (TSPMD) with samples of each form, the actual printed form and/or digital layout of all forms for approval by the Assistant Commissioner-Client Support Service (ACIR-CSS) as recommended by the Chief-TSPMD.

3.2 The **CONTRACTOR** shall use a high grade quality paper as specified in Section II of this TOR and shall be tested and certified by the Forest Products Research & Development Institute, DOST at the expense of the **CONTRACTOR.** For this purpose, the **CONTRACTOR** shall provide the Procurement Division with properly labeled 25 blank sheets of each form, within three (3) working days from receipt of NTP. The DOST testing result shall be equal to or higher than the BIR requirement. In the event that the result is lower than the BIR requirement, the **CONTRACTOR** shall provide another 25 blank sheets of properly labeled paper as specified in Section II within two (2) working days from receipt of testing result.

3.3 The **CONTRACTOR** shall print the forms as specified in Section II of this document and based on the actual printed form or digital layout for each form (Annexes "A1 to A2") as approved by ACIR-CSS.

3.4 The **CONTRACTOR** shall deliver the printed forms on or before the date specified in Section I of this TOR to the Warehousing and Distribution Section of Property Division, BIR National Office.

3.5 The **CONTRACTOR** shall turn over all proofs, films and/or plates (whichever is applicable) to the ACIR-CSS through Chief-TSPMD within five (5) working days after the complete delivery of all the forms specified in Section II.

A Certificate of Acceptance and Custody shall be issued by the Chief-TSPMD, certified true and correct by the ACIR-CSS.

IV. RESPONSIBILITIES OF THE BIR

4.1 The Procurement Division shall provide the ACIR-CSS and Chief-TSPMD a copy of the Notice to Proceed (NTP) duly received by the **CONTRACTOR**.

4.2 TSPMD shall provide the **CONTRACTOR** with a manuscript of each form in soft and/or hard copies within three (3) calendar days from receipt of the NTP by the **CONTRACTOR**.

4.3 ACIR-CSS shall approve and affix her signature and date of approval in the sample actual printed form and digital layout within three (3) calendar days from receipt thereof.

4.4 The Procurement Division shall acknowledge receipt of 25 blank sheets of properly labeled paper from the **CONTRACTOR,** and submit the same to the Department of Science & Technology (DOST) for testing. The Procurement Division shall also secure/pick-up the DOST testing result

as scheduled, and shall immediately notify the **CONTRACTOR** and TSPMD of its release.

V. SERVICE LEVEL AGREEMENT

The BIR shall maintain a Service Level Agreement (SLA) with the **CONTRACTOR** that provides a provision for liquidated damages for their non-compliance.

CRITERIA	DELIVERABLES	LIQUIDATED DAMAGES
5.1 Actual Printed Form or Digital Layout	The **CONTRACTOR** shall provide TSPMD with the sample of actual printed form or digital layout for each form within three (3) calendar days from receipt of the manuscript in soft and/or hard copies from TSPMD. (Section 3.1)	1/10th of 1% of the Total Contract Price for every day of delay
5.2 Paper Quality	The **CONTRACTOR** shall use a high grade quality paper. (Section 3.2)	50% of the Total Contract Price of the particular form delivered.
	The **CONTRACTOR** shall provide the Procurement Division with properly labeled 25 blank sheets of each form, within three (3) working days from receipt of NTP. (Section 3.2)	1/10th of 1% of the Total Contract Price for every day of delay
	In the event that the DOST testing result is lower than the BIR requirement, the **CONTRACTOR** shall provide another 25 blank sheets of properly labeled paper within two (2) working days from receipt of testing result. (Section 3.2)	1/10th of 1% of the Total Contract Price for every day of delay
5.3 Delivery Period	The **CONTRACTOR** shall deliver the printed forms on or before the date specified in Section I of this TOR to the Warehousing and Distribution Section of Property Division, BIR National Office. (Section 3.4)	1/10th of 1% of the Contract Price of the particular form undelivered per day of delay.
5.4 Proofs, Films and/or Plates	The **CONTRACTOR** shall turn over all proofs, films and/or plates (whichever is applicable) to the ACIR-CSS through Chief-TSPMD within five (5) working days after the complete delivery of all the forms specified in Section II. (Section 3.5)	1/10th of 1% of the Total Contract Price of the particular form for every day of delay

The BIR reserves the right not to accept and/or pay for the printed/delivered BIR forms if they do not conform to the approved quantity, version and specifications.

VI. WARRANTIES OF THE CONTRACTOR

6.1 The **CONTRACTOR** warrants that it shall conform strictly to the terms and conditions of this Terms of Reference, its attachments and other bid documents.

6.2 The **CONTRACTOR** shall coordinate only with authorized and/or designated BIR personnel in the performance of its tasks/services.

6.3 The **CONTRACTOR** shall neither assign, transfer, pledge, nor subcontract any part or interest therein, except with the prior written approval of the BIR.

6.4 The **CONTRACTOR** agrees to hold the Proprietary Information in strict confidence. The **CONTRACTOR** furthermore agrees not to reproduce, transcribe, or disclose the Proprietary Information to third parties without prior written approval of the BIR. The **CONTRACTOR** shall not print, sell, distribute in excess of the contracted volume.

6.5 The **CONTRACTOR** shall submit one (1) year warranty security in the form of special bank guarantee equivalent to one percent (1%) of the total contract price. The warranty shall commence on the acceptance date indicated in the Certificate of Acceptance. The said amount shall only be released after the lapse of warranty period or after consumption thereof. Provided, however, that BIR Minor Forms delivered are free from latent defects and all the conditions imposed under the contract have been fully met.

VII. TERMS OF PAYMENT

7.1 The **CONTRACTOR** shall submit Invoice within fifteen (15) calendar days after completion of delivery of the printed BIR Minor Forms.

7.2 Payment to the **CONTRACTOR** shall be subject to the required Creditable Expanded Withholding Tax (CEWT) of two percent (2%) and Creditable Withholding Tax on VAT of five percent (5%).

7.3 Payment shall be made to the CONTRACTOR within a reasonable time from submission to concerned BIR Offices of the documentary requirements such as, but not limited to the following:

7.3.1 Transmittal Letter by TSPMD to the **CONTRACTOR** re: manuscript in soft and/or hard copy;
7.3.2 Receiving copy of the **CONTRACTOR**'s transmittal of actual printed form or digital layout for approval by the ACIR-CSS;
7.3.3 Approved copy of the final actual printed form or digital layout;
7.3.4 Transmittal Letter of the **CONTRACTOR** addressed to the Chief, Procurement Division re: properly labeled 25 blank sheets of each form for DOST testing;
7.3.5 DOST Certificate/Testing Result;
7.3.6 Original Delivery Receipts;
7.3.7 Original Copy of Dealer's/Supplier's Invoice showing the quantity, description of the forms, unit and total value, duly signed by the dealer or his representative, and indicating receipt by the proper agency official of forms delivered;
7.3.8 Request for Inspection - Forms;

7.3.9 Certificate of Acceptance issued by the Chief-TSPMD and certified true and correct by the ACIR-CSS;
7.3.10 Inspection and Acceptance Committee (IAC) Report;
7.3.11 Request for Inspection – turn over of proofs, films and/or plates whichever is applicable;
7.3.12 Certificate of Acceptance and Custody issued by the Chief-TSPMD and certified true and correct by the ACIR-CSS;
7.3.13 Warranty Security (Special Bank Guarantee);
7.3.14 Letter of Introduction (LOI), if applicable; and
7.3.15 All other required documents based on existing issuances.

7.4 No advance payment shall be made as provided in Section 88 of PD 1445.

VIII. PRE-TERMINATION OF CONTRACT

8.1 The Contract for the **Procurement of BIR Minor Forms for the Calendar Year 2024 (1 Lot)** may be pre-terminated by the BIR for any violation of the terms of contract. In case of pre-termination, the **CONTRACTOR** shall be informed by the BIR within thirty (30) days prior to such pre-termination.

8.2 In case of pre-termination of contract, the **CONTRACTOR** shall be liable to additional liquidated damages equivalent to one percent (1%) of the contract price as provided by the Government Accounting Manual (GAM) and forfeiture of Performance Security.

8.3 The BIR shall have the right to blacklist the **CONTRACTOR** in case of pre-termination of contract.

Prepared by:

ELENITA S. MARIANO
Chief, Taxpayer Service Programs
& Monitoring Division (TSPMD)

Recommending Approval:

JANETTE R. CRUZ
Assistant Commissioner
Client Support Service

Approved by:

MARIDUR V. ROSARIO
Deputy Commissioner
Operations Group

Annex A1

Annex A2

This establishment MUST issue

RECEIPT/INVOICE

for each service rendered/sale of goods.

Business Name

Registered Name

TIN and Branch Code

2 TO 4 YEARS IMPRISONMENT
FOR NON-ISSUANCE OF RECEIPT/INVOICE
REPORT VIOLATORS TO ANY OF THE FOLLOWING:

- ❑ Telephone No. 8981-7030
- ❑ contact_us@bir.gov.ph
- ❑ commissioner@bir.gov.ph
- ❑ ANY BIR OFFICE

This NOTICE must be posted within this establishment in an area conspicuous to the public view.

SEALING AND MARKING OF BIDS

Mark the first and second copies as:

"ORIGINAL –TECHNICAL COMPONENT"
"ORIGINAL – FINANCIAL COMPONENT"

"DUPLICATE – TECHNICAL COMPONENT"
"DUPLICATE – FINANCIAL COMPONENT"

Each Bidder shall submit ***one (1) original and one (1) duplicate copy*** of the first and second components of its bid.

Each copy shall be submitted in ***a separate sealed and signed*** envelope, ring bound or properly fastened and arranged in order listed in the checklists for envelopes 1 and 2.

All envelopes shall be duly signed in the sealed overlaps or flaps by the bidder or duly authorized representative in order to maintain the integrity of the documents.

MARK THE ORIGINAL TECHNICAL COMPONENT AS:

BIDS AND AWARDS COMMITTEE
Bureau of Internal Revenue - National Office (BIR-N.O.)
Diliman, Quezon City

COMPANY NAME
ADDRESS
ORIGINAL –TECHNICAL COMPONENT
For

SFTP/FTPS CLOUD SUBSCRIPTION FOR THE SUSTAINABILITY
OF eBIRFORMS SYSTEM AND ePAYMENT
PUBLIC BIDDING NO. 2024-36 (GOODS) Re-bidding
DO NOT OPEN BEFORE 1:30 P.M.
FEBRUARY 15, 2024

MARK THE ORIGINAL FINANCIAL COMPONENT AS:

BIDS AND AWARDS COMMITTEE
Bureau of Internal Revenue - National Office (BIR-N.O.)
Diliman, Quezon City

COMPANY NAME
ADDRESS
ORIGINAL-FINANCIAL COMPONENT
For

SFTP/FTPS CLOUD SUBSCRIPTION FOR THE SUSTAINABILITY
OF eBIRFORMS SYSTEM AND ePAYMENT
PUBLIC BIDDING NO. 2024-36 (GOODS) Re-bidding
DO NOT OPEN BEFORE 1:30 P.M.
FEBRUARY 15, 2024

SEALING AND MARKING OF BIDS

PUT ALL <u>ORIGINALS</u> IN ONE ENVELOPE AND MARK THE OUTER ENVELOPE AS:

BIDS AND AWARDS COMMITTEE
Bureau of Internal Revenue - National Office (BIR-NO)
Diliman, Quezon City

COMPANY NAME
ADDRESS
ORIGINAL BID
For

SFTP/FTPS CLOUD SUBSCRIPTION FOR THE SUSTAINABILITY OF eBIRFORMS SYSTEM AND ePAYMENT
PUBLIC BIDDING NO. 2024-36 (GOODS) Re-bidding
DO NOT OPEN BEFORE 1:30 P.M.
FEBRUARY 15, 2024

MARK THE DUPLICATE TECHNICAL COMPONENT AS:

BIDS AND AWARDS COMMITTEE
Bureau of Internal Revenue - National Office (BIR-NO)
Diliman, Quezon City

COMPANY NAME
ADDRESS
DUPLICATE – TECHNICAL COMPONENT
For

SFTP/FTPS CLOUD SUBSCRIPTION FOR THE SUSTAINABILITY OF eBIRFORMS SYSTEM AND ePAYMENT
PUBLIC BIDDING NO. 2024-36 (GOODS) Re-bidding
DO NOT OPEN BEFORE 1:30 P.M.
FEBRUARY 15, 2024

MARK THE DUPLICATE FINANCIAL COMPONENT AS:

BIDS AND AWARDS COMMITTEE
Bureau of Internal Revenue - National Office (BIR-NO)
Diliman, Quezon City

COMPANY NAME
ADDRESS
DUPLICATE – FINANCIAL COMPONENT
For

SFTP/FTPS CLOUD SUBSCRIPTION FOR THE SUSTAINABILITY OF eBIRFORMS SYSTEM AND ePAYMENT
PUBLIC BIDDING NO. 2024-36 (GOODS) Re-bidding
DO NOT OPEN BEFORE 1:30 P.M.
FEBRUARY 15, 2024

SEALING AND MARKING OF BIDS

PUT ALL <u>DUPLICATES</u> IN ONE ENVELOPE AND MARK THE OUTER ENVELOPE AS:

BIDS AND AWARDS COMMITTEE
Bureau of Internal Revenue - National Office (BIR-NO)
Diliman, Quezon City

COMPANY NAME
ADDRESS
DUPLICATES
For

SFTP/FTPS CLOUD SUBSCRIPTION FOR THE SUSTAINABILITY OF eBIRFORMS SYSTEM AND ePAYMENT
PUBLIC BIDDING NO. 2024-36 (GOODS) Re-bidding
DO NOT OPEN BEFORE 1:30 P.M.
FEBRUARY 15, 2024

PUT ALL <u>TWO (2) ENVELOPES</u> IN ONE ENVELOPE AND MARK THE OUTER ENVELOPE AS:

BIDS AND AWARDS COMMITTEE
Bureau of Internal Revenue - National Office (BIR-NO)
Diliman, Quezon City

COMPANY NAME
ADDRESS
ORIGINALS & DUPLICATES
For

SFTP/FTPS CLOUD SUBSCRIPTION FOR THE SUSTAINABILITY OF eBIRFORMS SYSTEM AND ePAYMENT
PUBLIC BIDDING NO. 2024-36 (GOODS) Re-bidding
DO NOT OPEN BEFORE 1:30 P.M.
FEBRUARY 15, 2024

<u>NOTE: Total envelopes to be used is SEVEN (7)</u>

Bid envelopes that are not properly sealed and marked, as required in the bidding documents, shall not be rejected, but the Bidder or its duly authorized representative shall acknowledge such condition of the bid as submitted. The BAC or the Procuring Entity shall assume no responsibility for the misplacement of the contents of the improperly sealed or marked bid, or for its premature opening.


Republic of the Philippines
gppb
Government Procurement Policy Board